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Case Number: 24STCV28780 Hearing Date: September 8, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 309

TENTATIVE RULING

LORENA TAMAYO, et

al.

vs.

FCA US, LLC, et

al.

Case No.: 24STCV28780

Hearing Date: September 8, 2026

Defendants'

motion for summary judgment is GRANTED.

On 11/4/2026,

Plaintiff Lorena Tamayo and Michael Rocha (collectively, Plaintiffs) filed suit against FCA US, LLC and Monrovia Chrysler Dodge Jeep Ram (collectively, Defendants), alleging violations of the Song-Beverly Warranty Act (SBA).

On 6/12/2025,

Defendants moved for summary judgment or, in the alternative, summary adjudication of the Complaint.

The motion is
unopposed.

Discussion

Defendants

argue that Plaintiffs cannot establish any of their claims because: (1) Plaintiff Rocha does not qualify as a statutory buyer of the Subject Vehicle; (2) Plaintiffs cannot establish that the alleged nonconformity covered by the express warranty substantially impaired the use, value or safety of the vehicle; (3) Plaintiffs cannot establish that the dealership did not complete the repair within a reasonable number of attempts; (3) Plaintiffs cannot establish that Defendants failed to provide sufficient literature and replacement parts to authorized service and repair facilities; (4) Plaintiffs cannot establish that the vehicle was unfit for ordinary purposes during the implied warranty period; and (5) Plaintiffs cannot establish a breach of any duty or any resulting damages.

As

to the first contention, Defendants argue that Defendant Rocha does not qualify as a statutory buyer under the SBA because it is undisputed that only Plaintiff Tamayo leased the vehicle, and Rocha did not. Specifically, Defendants submitted evidence that: (1) Only Plaintiff Tamayo signed the lease agreement's signature line titled "Lessee." (Tamayo Dep. at 18:3-7); (2) Only Plaintiff Tamayo leased from a retail seller, Monrovia Chrysler Dodge Jeep Ram. (UMF no. 1); and (3) the vehicle has been registered in Plaintiff Tamayo's name. (UMF no. 2)

The SBA

allows a "buyer of consumer goods . . . [to] bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code § 1794(a).) A statutory buyer is "any individual who buys consumer goods" from a retail seller. (Civ. Code § 1791(b); see *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340 (holding that a retail seller is a person or business that is "business of selling or leasing consumer goods to retail buyers.")). A

“sale,” for purposes of the Act, occurs upon “[t]he passing of title from the seller to the buyer for a price.” (Civ. Code § 1791(n)(1).)

Moreover,

Defendants submitted case law to show that Plaintiff Rocha is not a buyer merely because he uses (or “consumes”) the good at issue. California courts recognize that Song-Beverly’s protections for buyers are narrower than other statutory protections that extend to all consumers:

Unlike

Song-Beverly, which allows only a buyer of consumer goods to bring an action (Civ. Code, §1794), Magnuson–Moss permits a “consumer” to bring an action for damages and other relief when a warrantor breaches its obligations under a warranty or under the act. The term consumer includes not only a “buyer (other than for purposes of resale) of any consumer product,” but also “any person to whom such product is transferred during the duration of an implied or written warranty (or service contract) applicable to the product, and any other person who is entitled by the terms of such warranty (or service contract) or under applicable State law to enforce against the warrantor (or service contractor) the obligations of the warranty (or service contract).

(Atkinson v. Elk Corp. of Tex.

(2006) 142 Cal. App. 4th 212, 222–23, emphasis added.)

After

review, the Court agrees that the undisputed evidence establishes that Plaintiff Rocha is not a buyer under the SBA and thus does not have standing as a Plaintiff in this action. The Court takes Plaintiffs’ non-opposition to be a concession to the motion on the merits.

Accordingly,

the Court limits its analysis to Plaintiff Tamayo.

As

to the first cause of action, Defendants argue that Plaintiff cannot establish that the alleged nonconformity covered by the express warranty substantially impaired the use, value or safety of the vehicle. In support, Defendants submitted evidence that:

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The Subject Vehicle was presented on August 12, 2024 for concerns of overheating. During this repair visit, the engine, fuel pressure sensor and oil filter were replaced under warranty. The battery was also replaced, a cost paid by Plaintiff Rocha. (UMF no. 12)

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Plaintiff, Mr. Rocha, testified during his deposition that he initially presented the vehicle on August 10, 2024, and claimed that the vehicle was exhibiting signs of overheating, although this information is not reflected in vehicle repair history provided by Plaintiffs.

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Even considering the August 10, 2024, as a "repair attempt" based on Plaintiff's representation, completing the repair within two visits to the dealership for a total of five days out of service is reasonable. There was no indication at the time that the lawsuit was filed by Plaintiffs that the nonconformity had not been repaired when presented to Defendant Monrovia on August 12, 2024.

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As of the filing of Plaintiffs' claims, there had been a presentation for a loose bolt, which was replaced on March 5, 2022. (UMF no. 8) The vehicle was not presented again until August 12, 2024, for a warrantable repair, at which time the engine, a sensor and oil filter were replaced. (UMF no. 12) As such, the vehicle was only presented for warrantable concerns on two occasions.

Taken together, this evidence supports a reasonable inference that there was no substantial impairment of the vehicle or that the dealership did not complete the repair within a reasonable number of attempts. Accordingly, the burden shifts to Plaintiff to disclose a triable issue of material fact as to breach of express warranty.

Plaintiff did not oppose the motion and thus necessarily has not met her burden.

As for the second cause of action, to state a claim under SBA section 1793.2(b), a

plaintiff must plead that a single repair attempt took a defendant more than 30 days to complete.” (Arriola v. Ford Motor Co. (C.D. Cal. Dec. 15, 2022) 2022 WL 20611223, at *2). Defendants submitted evidence that at the time that Plaintiffs filed their complaint, the vehicle had been presented for a single warranty repair when the engine was replaced, which was completed in four days. (UMF no. 12.)

Taken

together, this evidence supports a reasonable inference that no repair took longer than 30 days to complete. Accordingly, the burden shifts to Plaintiff to disclose a triable issue of material fact as to the claim for violation of Civil Code section 1793.2 (b).

Plaintiff did

not oppose the motion and thus necessarily has not met her burden.

As for the

third cause of action, Civil Code section 1793.2(a)(3) requires “[e]very manufacturer of consumer goods sold in this state and for which the manufacturer has made an express warranty shall: . . . (a)(3) Make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2(a)(3).) Defendants submitted evidence that none of the repair orders in this case make any note of issues related to replacement parts or inadequate service literature, nor is there evidence that plaintiffs were damaged as a result of FCA's failure to provide service literature or replacement parts.

Because a

repair order does not indicate any failed or delayed repair due to unavailable parts or service literature, Plaintiff cannot establish an essential element of a Civil Code section 1793.2(a)(3) claim.

Accordingly,

the Court finds no triable issue of material facts exists as to the third cause of action.

As for the

fourth cause of action, an implied warranty arises by operation of law and extends for one year from the date of delivery. (Civ. Code § 1791.1(c).) It is

not a guarantee that a vehicle is free from all defects; “it provides for a minimum level of quality.” (Tae Hee Lee v. Toyota Motor Sales, U.S.A. Inc. (C.D. Cal. 2014) 992 F. Supp. 3d 962, 979 (quoting Am. Suzuki Motor Corp. v. Superior Ct. (1995) 37 Cal. App. 4th 1291, 1295–96). The fact a plaintiff continues using their vehicle, despite an alleged defect, is evidence that the vehicle remained fit for its ordinary use. (See Id.)

Here,

Defendants submitted evidence to show that Plaintiffs’ vehicle was reasonably suited for ordinary use—i.e., driving. Plaintiffs had driven the vehicle nearly 54,000 miles by the last presentation on March 10, 2025. (UMF no. 15) The Plaintiffs even voluntarily extended the term of the lease by six months on April 1, 2025 (UMF no. 16). Further, Mr. Rocha testified that he was still driving his vehicle to work as of the date of his deposition, August 19, 2025, approximately 110 miles a week. (UMF no. 17) There was no damage to the Subject Vehicle and Plaintiffs had not filed any insurance claims concerning the vehicle. (UMF no. 18)

Taken

together, the Court finds no reasonable inference that the vehicle was reasonably suited for driving and thus finds no triable issue of material facts exists as to the fourth cause of action. The Court takes Plaintiffs’ non-opposition to be a concession to the motion on the merits.

Finally, as

to the fifth cause of action, the Court finds the claim barred by the economic loss rule as Plaintiff seeks purely economic losses relating to a purported breach of warranty contract. According to the Supreme Court’s decision in *Rattagan v. Uber Technologies (2024) Inc.*, 17 Cal. 5th 1, 26, “[w]henver a contract breach causes physical harm to a person or property, the economic loss rule’s limitation gives way,” but “[w]hen a contractual breach results only in economic losses, the pecuniary injury may fall within the scope of the parties’ precontractual expectations and their allocation of risks” and the economic loss doctrine applies. Where, as here, the complained of injury is that the purported repair did not live up to the quality promised, that is an injury sounding in contractual expectations. Put succinctly: “the economic loss rule requires a contracting party to recover in contract for purely economic loss due to disappointed expectations, unless the party can demonstrate harm above and beyond a broken contractual promise.” (Id. at 20.)

Accordingly,
the Court finds no triable issue of material facts exists as to the fifth cause
of action. The Court takes Plaintiffs' non-opposition to be a concession to the
motion on the merits.

Based on the
foregoing, Defendants' motion for summary judgment is granted.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.